

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Manuel	Team: Team # 4	CCRB Case #: 201411738	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 11/19/2014 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/19/2016	Precinct: 60
Date/Time CV Reported Thu, 11/20/2014 10:11 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/20/2014 10:11 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Mckiski	14969	951990	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kurt Cani	15367	948191	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Mckiski	Discourtesy: PO Jonathan Mckiski spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Jonathan Mckiski	Abuse: PO Jonathan Mckiski threatened to arrest § 87(2)(b)	B . Unfounded

Case Summary

On November 19, 2014, at approximately 10:00 p.m., § 87(2)(b) was involved in a dispute with § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) said that § 87(2)(b)'s car was blocking § 87(2)(b)'s driveway, but § 87(2)(b) disagreed. § 87(2)(b) called 911 twice about the car. § 87(2)(b)'s girlfriend (who asked that her name not be included in the case file) called 911 regarding the dispute. PO Jonathan Mckiski and PO Kurt Cani of the 60th Precinct responded. PO Mckiski allegedly spoke rudely to § 87(2)(b) (**Allegation A**) and threatened to arrest his wife, § 87(2)(b) (**Allegation B**). There were no arrests or summonses (complaint encl. 4-5).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Inquiry into the status of civil proceedings is pending. § 87(2)(b) [§ 86(4)]

CCRB Histories

- PO Mckiski has been a member of the NYPD for three years and has been the subject of three prior CCRB allegations in two cases. The allegations were not substantiated § 87(2)(g)
- This is the first CCRB case involving § 87(2)(b) or § 87(2)(b) (encl. 2-3).

Findings and Recommendations

Allegation A – PO Jonathan Mckiski spoke rudely to § 87(2)(b)

Allegation B – PO Jonathan Mckiski threatened to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that while he was trying to explain the situation to the officers, PO Mckiski told him to stop screaming and to “shut up.” § 87(2)(b) argued that he was not screaming and did not have to “shut up.” The officers were going to allow § 87(2)(b) to move his car without issuing him a summons. § 87(2)(b) told the officers that they should issue him a summons or warning. PO Mckiski replied, “Don’t tell me what I have to do...Get out of here.” § 87(2)(b) to leave, and PO Mckiski yelled, “Go inside! Go fuck yourself!” § 87(2)(b) went into his house and came back outside with a pen and paper. § 87(2)(b) asked the officers for their names and shield numbers. The officers provided the information and he wrote it down (encl. 11). He stood in his driveway. PO Mckiski said to him, “What the fuck are you standing here? Get out of here.” § 87(2)(b) protested that he was on his own property. PO Mckiski told him to go back to his house. § 87(2)(b) complied. As he was walking to his front door, PO Mckiski shouted, “Fuck you, motherfucker. Fuck you.” In his CCRB statement, § 87(2)(b) did not mention any conversation between § 87(2)(b) and PO Mckiski. He did not allege that PO Mckiski threatened to arrest her (encl. 7-13).

§ 87(2)(b) corroborated § 87(2)(b)'s testimony regarding his conversation with PO Mckiski. She testified that PO Mckiski told § 87(2)(b) and § 87(2)(b) who were not yelling but who have naturally loud speaking voices, to “shut up” and not to raise their voices. § 87(2)(b) argued that she was not raising her voice and was only trying to explain the situation. PO Mckiski said, “Don’t scream. If you’re talking like this, go inside.” § 87(2)(b) continued arguing. PO Mckiski said, “If you don’t go inside, you will be punished.” § 87(2)(b) interpreted this statement as a

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date